

Student Data Privacy Policy

Ministry of Education and Skills Development (MoESD) | Circular MoESD/EDU/2024/09 |
Effective 1 June 2024 | Applies to Student Data Platform (SDP), Digital Learning Infrastructure (DLI), and state portals

Article 1 — Definitions and Scope

Definitions and Interpretation

Unless context requires otherwise, capitalized terms match usage in cross-referenced MoESD circulars. Where two documents define the same term differently, the more specific document controls for that domain (e.g., 'baseline' in assessment reports vs. enrollment data policy).

Baseline Data

Minimum enrollment fields required before a student ID is activated in SDP; NOT identical to assessment 'baseline wave' in RLOS.

Processing

Any operation on personal data including storage on DLI analytics pipelines.

Pseudonymization

Token replacement reversible only by MoESD Data Steward; used in NIEA research access.

Compliance

Adherence to this policy; distinct from 'curriculum compliance' in NCF monitoring.

Article 2 — Data Governance Principles

- 2.1 Lawfulness, fairness, and transparency in all processing.
- 2.2 Purpose limitation: data collected for education shall not be repurposed for commercial profiling.
- 2.3 Data minimization: fields beyond baseline require documented necessity.

Article 3 — Roles and Responsibilities

Role	Entity	Responsibilities
Data Steward	MoESD	Key management, research firewalls
Data Protection Officer	State / School	DPIA, breach notification
Controller	School head	Accuracy of enrollment baseline
Processor	SDP vendor	Sub-processor approvals

Article 6 — Permitted Processing

Article 6.2 — Learning Analytics

6.2.1 Clickstream and session logs from DLI may be processed for instructional improvement without parental consent if anonymized at aggregation; student-level logs require notice per Article 8.

Article 7 — Retention

7.2 Research tokens linked to RLOS samples: retention 10 years, then secure deletion.

7.4 Alumni records: retention until age 25 or 7 years post-exit, whichever later.

Article 9 — Research Exceptions

9.3 NIEA studies may receive pseudonymized extracts under MoU; re-identification prohibited (penalties Article 12). Cross-reference NIEA/TR/2024/LO-02 Annexure D.

Article 12 — Penalties

Offense	Administrative	Criminal referral threshold
Unauthorized disclosure	INR 5–50 lakh fine	Willful sale of data
Failure to notify breach (72h)	Suspension of SDP access	Gross negligence
Re-identification attempt	Termination + audit	Yes

Article 15 — Approval Workflows

New data fields require: School request → District DPO review → State approval → MoESD registry update. Emergency epidemiological fields follow expedited 48-hour pathway with retroactive DPIA.

Article 18 — Implementation

Implementation Phases and Reporting Timelines

Phase	Window	Reporting obligation
Phase A — Inventory	Days 1–90	Data Protection Impact Assessment (DPIA)
Phase B — SDP hardening	Days 91–180	Role matrix publication
Phase C — Training	Days 181–270	Certification of DPOs
Phase D — External audit	Day 271+	Third-party report to MoESD

Compliance Notes for Implementing Officers

Implementing officers must retain evidence of adherence for seven years or until superseded by amendment, whichever is longer. Electronic records stored on the SDP must use role-based access controls described in the Student Data Privacy Policy. Failure to document phase completion constitutes a reportable incident under Clause 18.4 where systemic patterns emerge.

Waivers may be granted only through the hierarchical approval workflow: School Head → District Education Officer → State Commissioner → MoESD Joint Secretary (Assessment & Policy). Emergency waivers during notified disasters follow expedited 72-hour retroactive approval rules in Annexure E.

Schedule 1 — Privacy Handling Procedures

Procedure P-01 — Parental Consent for Portfolios

Digital portfolios storing STEM project media require opt-in captured in SDP flag `CONSENT_PORTFOLIO`; default is off. See STEM Curriculum Evaluation recommendations.

Procedure P-02 — Breach Notification

1. Contain within 4 hours; preserve logs.
2. Notify State DPO within 24 hours.
3. MoESD notification within 72 hours if >500 subjects affected.
4. Parent communication template within 7 days unless law enforcement hold.

Schedule 2 — Baseline Data Fields (Excerpt)

Field	Required?	Retention
Legal name	Yes	Life of record + 7y
Guardian contact	Yes	Life of record
Biometric	No (prohibited)	—
Caste category (if state law)	Conditional	Statutory
DLI session logs	If DLI school	3y

Supplemental Provisions — SP

The following clauses elaborate enforcement mechanics omitted from the primary parts due to length constraints. They are binding unless explicitly marked advisory. Cross-references to NIEA technical reports are illustrative, not incorporative by reference, except where MoESD circulars state otherwise.

SP.1 Implementing authorities shall document adherence to data minimization, pedagogical time allocations, and reporting timelines specified in the master schedule. Sub-clause SP.1.1 clarifies that waivers require written justification within ten working days of the triggering event. Sub-clause SP.1.2 requires publication on the school notice board and SDP parent portal where operational.

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Worked Examples

Example 1: A district delays LOI reporting citing floods. The District Education Officer files Form EX-11 within 15 days, MoESD grants one-term extension, and NIEA marks those schools as non-comparable in public dashboards until wave completion.

Example 2: A school uploads STEM videos to SDP portfolios without parental opt-in. The DPO orders deletion within 72 hours; repeated offense escalates under privacy policy Article 12.

Example 3: A teacher with provisional certification leads DLI sessions. The school must either assign a micro-credential holder as lead or suspend DLI until Phase IV readiness under TTC Guidelines.

Supplemental Provisions — EN

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Master Reporting Calendar (Excerpt)

Board	Phase	Deadline
SEB-KA	Phase 0	Due 2023-Q1
SEB-KA	Phase 0	Due 2023-Q2
SEB-KA	Phase 0	Due 2023-Q3
SEB-KA	Phase 0	Due 2023-Q4
SEB-KA	Phase 1	Due 2024-Q1
SEB-KA	Phase 1	Due 2024-Q2
SEB-KA	Phase 1	Due 2024-Q3
SEB-KA	Phase 1	Due 2024-Q4
SEB-KA	Phase 2	Due 2025-Q1
SEB-KA	Phase 2	Due 2025-Q2
SEB-KA	Phase 2	Due 2025-Q3
SEB-KA	Phase 2	Due 2025-Q4
SEB-KA	Phase 3	Due 2026-Q1
SEB-KA	Phase 3	Due 2026-Q2
SEB-KA	Phase 3	Due 2026-Q3
SEB-KA	Phase 3	Due 2026-Q4

Board	Phase	Deadline
SEB-MH	Phase 0	Due 2023-Q1
SEB-MH	Phase 0	Due 2023-Q2
SEB-MH	Phase 0	Due 2023-Q3
SEB-MH	Phase 0	Due 2023-Q4
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SEB-KA	Phase 3	Due 2026-Q2
SEB-KA	Phase 3	Due 2026-Q3
SEB-KA	Phase 3	Due 2026-Q4
SEB-MH	Phase 0	Due 2023-Q1
SEB-MH	Phase 0	Due 2023-Q2
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